

12. 9:00 AM CASE NUMBER: C25-01624

CASE NAME: ROSS HILLESHEIM VS. LEN EPSTEIN

***HEARING ON MOTION IN RE: ATTORNEYS FEES**

FILED BY: EPSTEIN, LEN I.

TENTATIVE RULING:

Defendants' unopposed motion for attorneys' fees is granted for the reasons stated in the motion.

The court has reviewed the Declaration of Len Epstein and the legal bills attached as Exhibit B to it. The nature of the work and the legal rate are reasonable and substantial evidence supports them. The court awards \$13, 866.50 in attorneys' fees.

The additional attorneys fees sought for bringing this motion are denied, as they are not included as part of Section 12.14 of the Operating Agreement for STEHM, where attorneys fees are allowed for "conducting the suit" and the suit had already been dismissed.

13. 9:00 AM CASE NUMBER: C25-02141

CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on January 26, 2026.

14. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

HEARING ON DEMURRER TO: PLAINTIFF LAURA WITTENBERG'S 4TH AMENDED COMPLAINT.

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer to fourth amended complaint is continued to January 12, 2026. Effective January 5th, 2026, this case is assigned for all purposes to the Honorable Leonard E. Marquez in Department 34.

15. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer to first amended cross complaint is continued to January 12, 2026. Effective January 5th, 2026, this case is assigned for all purposes to the Honorable Leonard E. Marquez in Department 34.

16. 9:00 AM CASE NUMBER: N23-0180
CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: MARTINEZ, EDUARDO

TENTATIVE RULING:

The motion for judgment on the pleadings is **granted, without leave to amend**. The Court may grant a motion for judgment on the pleadings directed to a declaratory relief cause of action when the complaint shows that a party is entitled to judgment as a matter of law. (*Alterra Excess & Surplus Ins. Co. v. Snyder* (2015) 234 Cal.App.4th 1390, 1401.) This rule is applicable in the case at bar, as discussed below.

Defendants shall prepare a proposed judgment, separate from any order on this motion, for circulation and submission to the Court for signature.

I. Background

The factual background was set forth in detail in the Court's ruling on the writ cause of action, filed on September 30, 2024. It need not be repeated here.

Petitioner filed this action in January 2023, soon after the relevant transaction. Respondents filed their Answer on April 12, 2023. Nothing occurred in this case until Petitioner filed a request for hearing on the "Petition for Writ of Mandate [Code Civ Proc. 1085]." After an unusual procedural sequence of briefing, and without any notice that the hearing would include oral testimony, the Court held a law and motion hearing on the writ in September of 2024. It ruled against Petitioner with respect to the writ of mandate cause of action, but noted that the declaratory relief and injunctive relief causes of action were still outstanding.

After unsuccessful efforts to meet and confer in compliance with Code of Civil Procedure, § 439 (see Declaration of William C. Mazzota in Support of Motion), defendants filed this motion for judgment on the pleadings on September 4, 2025, arguing the remaining causes of action are duplicative of the writ cause of action and, therefore, there is nothing left to decide. Petitioner opposes the motion, arguing that the reasons for denial of the writ included the denial of oral testimony at the time of the hearing on the writ (the hearing had not been noticed as an evidentiary hearing, as required). In the alternative, if the motion is granted, Petitioner requests leave to amend.

II. Request for Judicial Notice (RJN)

The motion is supported by a request for judicial notice attaching certain parts of the City Charter and Resolution No. 168-22 of the City Council. Petitioner does not object to the request, which is **granted**.

III. Standard

Code of Civil Procedure, § 438 (c)(1)(B)(ii) allows the Court to grant a motion for judgment on